

Court No. - 37

Case :- WRIT - C No. - 5768 of 2020

Petitioner :- Vijendra Singh

Respondent :- U.P. Power Corporation Limited And 2 Others

Counsel for Petitioner :- Arvind Kumar Singh

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C.

Hon'ble Abhinava Upadhya, J.

Hon'ble Shamim Ahmed, J.

Heard Sri A.K. Singh, learned counsel for the petitioner and Sri Mohd. Parvej, learned counsel for the respondent.

Upon the allegation of theft of electricity, a demand notice has been issued to the petitioner for a sum of Rs.5,52,000/- and odd by the demand letter dated 1.5.2018. According to the learned counsel for the petitioner, when the Amin visited in the house of the petitioner to press for recovery, then he came to know of the demand letter as well as undated letter although the same was never served upon the petitioner.

He further submitted that on the allegation of theft of electricity an F.I.R. was lodged against the petitioner on 23rd July, 2016 under Section 135 of the Electricity Act, at Police Station Aliganj, District Etah. It is further submitted that against the said F.I.R., the final report has been submitted by the Police and has also been accepted by the Court on 13.7.2019. As such, the petitioner's counsel submitted that there is no allegation of electricity theft, then the petitioner's connection has to be restored and the demand has to be adjusted accordingly against the electricity dues.

Sri Mohd. Parvez, learned counsel for the respondents no. 1 and 2 has drawn our attention to Clause 8.2h of the Electricity Supply Code, 2005 which provides that upon the decision of the Court that the theft is not established, the charges levelled and the assessment made by the licensee against the consumer shall be withdrawn in writing and the connection shall be restored through the original meter.

Accordingly, we deem it proper to remand the matter back to the Executive Engineer concerned, who will consider the claim of the petitioner upon filing a representation by the petitioner under Clause 8.2h of the Electricity Supply Code, 2005 or any other relevant provision, the Executive Engineer will thereafter pass reasoned and speaking order within one month.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to the demand notice dated 1.5.2018 (Annexure 6 to the writ petition).

With the aforesaid observation/direction, the present writ petition is **disposed of**.

Order Date :- 17.2.2020

Ishan

(Shamim Ahmed,J.) (Abhinava Upadhya J.)